

Data Protection Compliance and Implementation Directive, 2026

Directive No. NDGC/DIR/2026/01 • Issued 15 January 2026 • Effective 1 April 2026

PART I - PRELIMINARY

Article 1 - Citation and Commencement

- (1) This Directive may be cited as the Data Protection Compliance and Implementation Directive, 2026 ("this Directive").
- (2) This Directive takes effect on 1 April 2026 and applies to all processing activities carried out on or after that date.
- (3) Upon commencement, the Commission shall cease to apply the Data Processing Guidance Note, 2021 as an operative instrument. Actions validly taken under the Guidance Note before 1 April 2026 remain unaffected.

Article 2 - Scope of Application

- (1) This Directive applies to a data controller or data processor that -
 - (a) is domiciled, resident or operating in Nigeria;
 - (b) processes personal data of data subjects located in Nigeria, whether or not the controller or processor is domiciled in Nigeria; or
 - (c) processes personal data that transits through infrastructure located in Nigeria.
- (2) This Directive does not apply to processing carried out by a natural person exclusively for personal or household purposes, nor to processing carried out by a competent authority for the prevention or investigation of a criminal offence, save that Article 6 (breach notification) applies in all cases.

Article 3 - Interpretation

In this Directive, unless the context otherwise requires -

"behavioural data" means personal data derived from the observation, measurement or inference of a data subject's conduct, including device interaction patterns, keystroke dynamics, transaction sequencing, location traces and any derived risk or propensity score;

"Compliance Audit Return" or "CAR" means the annual return filed with the Commission under Article 11;

"Material Breach" means a personal data breach that (a) affects more than 500 data subjects, (b) involves financial account data, biometric data or behavioural data, or (c) results in the unavailability of a production data store for more than four consecutive hours;

"processing threshold" means the total number of distinct data subjects whose personal data a controller or processor has processed in any rolling six-month period;

"Transfer Impact Assessment" or "TIA" means the documented assessment required under Article 9(3);

"automated decision system" means any system that produces an output which, without meaningful human review, determines or materially influences a decision producing legal or similarly significant effects for a data subject.

PART II - CLASSIFICATION AND REGISTRATION

Article 4 - Classification of Controllers and Processors

- (1) Every controller and processor within scope shall determine its classification tier by reference to its processing threshold and the categories of data it processes, in accordance with Table 1.
- (2) Where a controller or processor satisfies the criteria of more than one tier, the higher tier applies.
- (3) Classification shall be reassessed at the end of each quarter. A controller that crosses into a higher tier shall notify the Commission within 30 days of the reassessment date.

Table 1 - Classification tiers, obligations and annual filing fees

Tier	Processing threshold (rolling 6 months)	Annual filing fee (NGN)	DPO required	CAR must be filed through a licensed DPCO
Standard	200 to 5,000 data subjects	100,000	No	No
High Level (HL)	5,001 to 50,000 data subjects	250,000	Yes	No
Ultra-High Level (UHL)	50,001 to 1,000,000 data subjects	750,000	Yes	Yes
Extra-High Level (EHL)	More than 1,000,000 data subjects, or any processing of biometric data or behavioural data in respect of more than 100,000 data subjects, irrespective of total threshold	2,000,000	Yes	Yes

- (4) A controller or processor below the Standard tier threshold is exempt from registration and from Article 11, but remains bound by Articles 6, 7, 9 and 14.

Article 5 - Registration

- (1) A controller or processor in the HL, UHL or EHL tier shall register with the Commission within 60 days of first crossing the applicable threshold.
- (2) The Commission shall maintain and publish a register of all HL, UHL and EHL entities.
- (3) Registration is valid for twelve months and shall be renewed on payment of the applicable fee in Table 1.

PART III - OPERATIONAL OBLIGATIONS

Article 6 - Personal Data Breach Notification

- (1) A controller shall maintain an internal breach register recording every personal data breach, whether or not notifiable.
- (2) Where a breach constitutes a Material Breach, the controller shall notify the Commission not later than **72 hours** after the controller becomes aware of the breach.
- (3) Where a Material Breach is likely to result in high risk to the rights of data subjects, the controller shall in addition notify each affected data subject not later than 7 days after becoming aware of the breach, using the most direct means of communication reasonably available.
- (4) A processor shall notify the controller without undue delay and in any event not later than 24 hours after becoming aware of a breach.

(5) A notification under sub-Article (2) shall state the nature of the breach, the categories and approximate number of data subjects affected, the likely consequences, and the measures taken or proposed.

Article 7 - Data Protection Impact Assessment

(1) A controller shall carry out a Data Protection Impact Assessment (DPIA) before commencing any of the following -

- (a) profiling based on behavioural data;
- (b) processing of biometric data for the purpose of uniquely identifying a natural person;
- (c) operation of an automated decision system;
- (d) a cross-border transfer involving the personal data of more than 10,000 data subjects; or
- (e) systematic monitoring of a publicly accessible area.

(2) A DPIA shall be documented, retained and made available to the Commission on request.

(3) Where a DPIA indicates a residual high risk that the controller cannot mitigate, the controller shall consult the Commission before commencing processing. The Commission shall respond within 45 days.

(4) A DPIA carried out under a previous instrument remains valid until the earlier of its stated review date or 31 December 2026.

Article 8 - Data Protection Officer

(1) A controller or processor in the HL, UHL or EHL tier shall appoint a Data Protection Officer (DPO).

(2) The DPO shall satisfy the qualification requirements in Schedule 2.

(3) The DPO shall report directly to the highest management level and shall not be dismissed or penalised for performing the functions of the office.

(4) The DPO may perform other duties, provided that those duties do not give rise to a conflict of interest. For the avoidance of doubt, a person holding operational responsibility for the design, security or availability of the systems that carry out the processing shall be treated as having a conflict of interest and shall not be appointed DPO of a UHL or EHL entity.

Article 9 - Cross-Border Transfers

(1) A controller shall not transfer personal data out of Nigeria except on one of the following bases -

- (a) an adequacy determination published by the Commission in respect of the destination jurisdiction;
- (b) a Cross-Border Data Transfer Instrument (CBDTI) approved by the Commission;
- (c) the explicit consent of the data subject, given after being informed of the risks; or
- (d) necessity for the establishment, exercise or defence of a legal claim.

(2) Reliance on sub-Article (1)(c) is not available where the transfer is systematic, recurring or a necessary feature of the service offered to the data subject.

(3) A controller relying on sub-Article (1)(b) shall complete a Transfer Impact Assessment before the first transfer and shall refresh it every 24 months.

(4) A CBDTI submitted for approval shall be determined by the Commission within 30 days. Where the Commission does not respond within that period, the instrument is deemed provisionally approved for a period of six months.

(5) Use of a cloud service provider whose processing infrastructure is located outside Nigeria constitutes a transfer for the purposes of this Article, notwithstanding that the controller retains logical control of the

data.

Article 10 - Data Subject Rights

- (1) A controller shall respond to a request to access, rectify, erase, restrict or port personal data within 30 days of receipt.
- (2) The period in sub-Article (1) may be extended once by a further 30 days where the request is complex, provided the data subject is informed of the extension within the initial period.
- (3) A data subject who is the subject of an automated decision may require that the decision be reviewed by a natural person, and the controller shall complete that review within 14 days.
- (4) No fee shall be charged for the first two requests made by a data subject in any twelve-month period.

PART IV - AUDIT, ENFORCEMENT AND RECORDS

Article 11 - Compliance Audit Returns

- (1) A controller or processor in the HL, UHL or EHL tier shall file a Compliance Audit Return with the Commission not later than **31 March** in each year, in respect of the preceding calendar year.
- (2) An entity incorporated on or after 1 January 2024 shall file its first CAR within fifteen months of incorporation, and annually thereafter.
- (3) A UHL or EHL entity shall file its CAR through a Data Protection Compliance Organisation (DPCO) licensed by the Commission. An HL entity may file directly.
- (4) Late filing attracts a surcharge of 50 per cent of the applicable filing fee, and the entity shall remain liable to file.

Article 12 - Records of Processing Activities

- (1) Every controller and processor in the HL tier and above shall maintain a record of processing activities stating, for each processing operation, the purpose, the lawful basis, the categories of data subjects and personal data, the recipients, any cross-border transfer and the applicable retention period.
- (2) The record shall be reviewed at least once every six months and shall be produced to the Commission within 7 days of a written request.

Article 13 - Sanctions

- (1) Where the Commission determines, following investigation, that a controller or processor has failed to comply with this Directive, it may impose a remedial fee not exceeding -
 - (a) in the case of a UHL or EHL entity, NGN 10,000,000 or 2 per cent of annual gross revenue in the preceding financial year, whichever is higher; and
 - (b) in any other case, NGN 2,000,000 or 2 per cent of annual gross revenue in the preceding financial year, whichever is higher.
- (2) In addition to a remedial fee, the Commission may order the suspension of a specified processing activity, or require the deletion of personal data unlawfully obtained.
- (3) The Commission shall issue a notice of investigation, and the respondent shall reply within 21 days of service.
- (4) In determining the amount of a remedial fee, the Commission shall take into account the entity's classification tier, the duration of the contravention, whether the contravention was self-reported, and the adequacy of the remedial measures adopted.

Article 14 - Retention of Compliance Evidence

- (1) A controller shall retain the following for a period of not less than **six years** from the date of creation -
 - (a) access and authentication logs for systems processing personal data;
 - (b) DPIAs, TIAs and records of processing activities;
 - (c) breach register entries and notifications made under Article 6; and
 - (d) consent records and evidence of the lawful basis relied upon.
- (2) Personal data itself shall not be retained beyond the period necessary for the purpose for which it was collected, and this Article does not authorise extended retention of personal data.

SCHEDULE 2 - DATA PROTECTION OFFICER QUALIFICATION

A person appointed as DPO of an HL, UHL or EHL entity shall -

- (a) hold a data protection certification accredited by the Commission, obtained not more than three years before appointment or maintained through continuing professional education;
- (b) have not less than three years of demonstrable experience in data protection, privacy law or information governance;
- (c) be resident in Nigeria, or where not resident, designate a representative in Nigeria who is contactable during business hours; and
- (d) in the case of a UHL or EHL entity, hold no operational responsibility falling within Article 8(4).

Note on interaction with other instruments. Nothing in this Directive relieves a controller of an obligation arising under sector-specific regulation. Where a sector regulator imposes a shorter notification period than Article 6, the shorter period applies.